

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

MOTION FOR CONFIDENTIAL TREATMENT

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its attorneys, hereby moves pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) April 8, 2024 Initial Order, the Protective Order entered on August 15, 2025 (the “Protective Order”), and Rule 5(b) of the FMC’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. § 502.5(b), for confidential treatment of SEA’s Exhibits to the Supplemental Motion to Compel Production from COSCO Shipping Lines Co., Ltd. (the “Supplemental Motion Exhibits”).

Confidential treatment is warranted because the exhibits submitted summarize and reference material that COSCO designated as “ATTORNEYS’ EYES ONLY” or “CONFIDENTIAL” pursuant to the Protective Order commercially sensitive information. As set forth in Paragraphs 3 and 5 of the Protective Order, these designations apply to trade secrets, confidential or proprietary research, development, marketing, commercial or financial information, and information whose disclosure has a substantial probability of jeopardizing the producing party’s competitive business interests. The documents at issue contain commercially sensitive, proprietary, and competitively harmful information that should not be disclosed publicly. The specific bases for confidential treatment of each exhibit are as follows:

COSCO1046339 is COSCO North America’s internal policy setting forth COSCO’s methodology for evaluating subsidiary business performance, including confidential scoring criteria, financial benchmarks such as profit targets and demurrage-related metrics, and incentive structures tied to internal key performance indicators. It has been marked Attorneys’ Eyes Only by COSCO.

COSCO1037727 comprises internal email correspondence among COSCO’s Global Sales Division, COSCO Korea, and U.S. operations personnel regarding Samsung’s outstanding

demurrage and detention balances, specific dollar amounts owed, collection strategies, and confidential service contract terms. It has been marked Attorneys' Eyes Only by COSCO.

COSCO0988499 contains internal COSCO operational communications among the America Trade Division, Global Sales Division, and regional offices regarding undelivered containers, customer-specific container volumes, and internal directives concerning booking controls—proprietary operational data reflecting COSCO's logistics management and trade strategies. It has been marked Attorneys' Eyes Only by COSCO.

COSCO1032512 is an internal email chain discussing discrepancies in Samsung's per diem account balances, specific invoice amounts and payment statuses spanning multiple years, and references to COSCO's internal data systems and Demurrage Index Assessment Memorandum—granular financial data totaling hundreds of thousands of dollars. It has been marked Confidential by COSCO.

COSCO1026444 records internal communications regarding COSCO's decision to suspend door delivery services at multiple U.S. destinations due to trucker shortages, disclosing customer-specific shipping volumes, service contract numbers, and commercially sensitive decisions about service suspensions and capacity limitations. It has been marked Attorneys' Eyes Only by COSCO.

COSCO1032353 contains the internal approval chain for waiving Samsung's demurrage charges, revealing COSCO's internal authority hierarchy for charge waivers, specific dollar amounts waived, and the deliberation process for customer accommodations at multiple management levels. It has been marked Attorneys' Eyes Only by COSCO.

COSCO0638845 is an extensive email chain discussing Samsung's disputed per diem invoices, internal decisions regarding whether to block Samsung's cargo releases, and the America

Trade Division's rejection of waiver requests—revealing enforcement strategies including shipment shutout threats and detailed financial breakdowns of invoices totaling over \$400,000. It has been marked Confidential by COSCO.

COSCO1029615 details internal correspondence regarding overdue Samsung invoices, including specific charge descriptions, amounts, chassis shortage disputes, and contractual provisions regarding carrier responsibility—proprietary billing data and collection coordination. It has been marked Confidential by COSCO.

COSCO1036871 contains internal communications regarding per diem waiver requests for Samsung shipments affected by limited gate hours and civil unrest, including the America Trade Division's rejection of certain waiver requests and COSCO's internal waiver-evaluation criteria. It has been marked Confidential by COSCO.

COSCO0306400 contains system-generated per diem notices and internal correspondence regarding Samsung's detention charges, including approval decisions on charge waivers, container-level billing data, and Samsung's claims for mitigation based on port restrictions and congestion. It has been marked Confidential by COSCO.

COSCO1036310 is a voluminous correspondence chain regarding Samsung per diem invoices and container return disputes, including container-by-container billing data, empty return restriction discussions, COVID-related operational disruptions, and COSCO's internal payment collection enforcement practices. It has been marked Confidential by COSCO.

Each of these documents reflects COSCO's internal business communications and proprietary operational data, the public disclosure of which would cause competitive harm to the Parties by revealing business strategies, business operations, customer-specific financial data, and internal performance metrics.

Pursuant to Paragraph 7 of the Protective Order and Rule 5(b), the Complainant will file both a confidential and public version of the Supplemental Motion Exhibits. For the foregoing reasons, the Complainant respectfully requests that the materials and exhibits designated as confidential in the Supplemental Motion Exhibits be kept confidential and not disclosed to the public.

Dated: June 10, 2026

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed June 10, 2026

/s/Kristine O. Little

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